

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 24, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-03230	Discover Bank vs. Nickolas Lemas
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Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Discover Bank is GRANTED without leave to amend the answer. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of written contract against defendant Nickolas Lemas. Defendant's amended answer filed on September 4, 2024, admits all statements of the complaint and does not allege any facts constituting a defense. In the absence of any opposition indicating how Defendant might amend his answer to allege a defense, the motion is granted without leave to amend.

Judgment shall be entered in favor of Plaintiff and against Defendant. Plaintiff is entitled to costs as prevailing party. The Court will sign the proposed order and judgment submitted with the moving papers.

The court trial scheduled for October 14, 2026, is vacated.

24CV-03246 Cavalry SPV I, LLC vs. Elias Rios

Motion for Order Deeming Admitted Requests for Admission

Plaintiff's motion is DENIED without prejudice due to insufficient notice. The proof of service indicates that Plaintiff served the notice of motion and motion by mail from an address outside California on June 2, 2026, less than the required sixteen court days plus ten calendar days before the hearing (unless an order shortening time has been obtained). (Code Civ. Proc., § 1005(a)(13), (b); Cal. Rules of Ct., rule 3.1300(a).) The Court notes that this is the second time Plaintiff has filed and served this motion without sufficient notice.

Case Management Conference

Appearance required.

24CV-03931 Santa Clara County Federal Credit Union vs. Anthony Tamariz, JR

Status Conference – Status of Default Judgment

Appearance required. The Court notes that Defendant's default was entered on May 29, 2025. Appear to address the status of default judgment. If Plaintiff files a request for default judgment or request for dismissal prior to the hearing, the hearing will be vacated.

25CV-07050 Capital One, N.A. vs. Omar Aguilar

Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Capital One, N.A. is GRANTED without leave to amend the answer. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of written contract against defendant Omar Aguilar. Defendant's answer filed on January 20, 2026, admits all statements of the complaint and does not allege any facts constituting a defense. In the absence of any opposition indicating how Defendant might amend his answer to allege a defense, the motion is granted without leave to amend.

Judgment shall be entered in favor of Plaintiff and against Defendant. Plaintiff is entitled to costs as prevailing party. The Court will sign the proposed order and judgment submitted with the moving papers.

The case management conference scheduled for December 4, 2026, is vacated.

26CV-01826 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]